Routledge, 2010); Elizabeth Kolsky, *Colonial Justice in British India: White Violence and the Rule of Law* (Cambridge University Press, 2011); Martin Thomas, *Violence and the Colonial Order: Police, Workers and Protest in the European Colonial Empires, 1918-1940*, (Cambridge University Press, 2012); and William Gallois, *A History of Violence in the early Algerian Colony* (Houndsmills, 2013).

02. Kim Wagner, op. cit., pp. 271–18.
03. Ibid., p. 231.
04. *Bhagat Singh v. The King Emperor* (1931) 33 BOMLR 950. Indeed, Kim Wagner cites legal sources himself (at fn. 83) to demonstrate the point; Mark Condos, 'Licence to Kill: The Murderous Outrages Act and the Rule of Law in Colonial India, 1867-1925', *Modern Asian Studies* (June 2015), pp. 479–517; and Elizabeth Kolsky, 'The Colonial Rule of Law and the Legal Regime of Exception: Frontier 'Fanaticism' and State Violence in British India', The *American Historical Review*, 120, 4 (20150, pp. 1,218–46.)
05. Kim Wagner, op. cit., p. 231. He refers to his own work, '"Calculated to Strike Terror": The Amritsar Massacre and the Spectacle of Colonial Violence', *Past & Present*, 233, 1 (1 November 2016), pp. 185–225 (Available at https://doi.org/10.1093/pastj/gtw037). Military historians such as Calwell had reminded his readers of 'the distinction between "civilised" and "un-civilised" people', suggesting that 'Uncivilised races attribute leniency to timidity'. (See C.E. Calwell, *Small Wars: Their Principle and Practice* (London: Tales End Press, 1896, 1899, 1906, p. 147; cited by Wagner at p. 230).
06. Mark Condos, *The Insecurity State* (Cambridge University Press, 2017), pp. 2–3.
07. Taylor C. Sherman, 'Tensions of Colonial Punishment: Perspectives on Recent Developments in the Study of Coercive Networks in Asia, Africa and the Caribbean', *History Compass*, 7, 3, pp. 659–77. DOI: 10.1111/j.1478-0542.2009.00597.x (Available at http://eprints.lse.ac.uk/32801/1/Sheman_Tensions_colonial_punishment_2009.pdf).
08. Ibid., p. 658.
09. Ibid., p. 659.
10. Taylor C. Sherman, 'From Hell to Paradise? Voluntary Transfer of Convicts to the Andaman Islands, 1921–1940', *Modern Asian Studies*, 2,